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Government backs down on fast-track amendments

10 December 2025

The Environmental Defence Society (EDS) is pleased to see that the Government is no longer pursuing several terrible proposed amendments to the Fast-track Approvals Act. It has released an Amendment Paper to the Fast-track Approvals Amendment Bill today which strikes through most of the bad ideas.

"These changes demonstrate that the Government has listened on some key issues, and we acknowledge those shifts," says Shay Schlaepfer, EDS Chief Operating Officer.

"We're particularly pleased to see that independent decision-making Panels still have discretion to invite comment from appropriate parties. The Amendment Bill sought to arbitrarily constrain this, but the Government has backed away from that.

"Our submission to the Select Committee clearly showed that Panels were exercising their discretion to invite comments judiciously. Most of the parties they have invited to date include the likes of adjacent owners and occupiers, infrastructure providers and the Parliamentary Commissioner for the Environment.

"EDS has been invited to comment on two projects, Trans Tasman's seabed mining proposal and Contact Energy's Southland Wind Farm. We are taking a targeted approach to engagement with fast-track, focusing on applications that pose serious and intergenerational risk to the natural environment.

"Other positive changes include:

- There is no longer an ability for applicants to 'panel-shop' and complain about who is appointed to hear their applications.
- Ministerial influence over activities of the Environmental Protection Authority has been pared back, and can no longer override the Authority's statutory functions.
- Applicants can no longer expand or intensify proposals after lodgement. Any modifications must be within scope of the original proposal.

"Of note, however, Ministers still have the ability to create Government Policy Statements about the regional or national benefits of infrastructure and development projects. Panels must take these Statements into account when making their decisions.

"There are no guardrails around Government Policy Statements. In effect, they provide a direct opportunity for Ministerial interference in substantive decisions. They need to be removed from the Bill.

"Other fundamental problems remain unaddressed:

- Standing to appeal remains extremely limited to those who must be invited to comment and does not extend to those that the Panel exercises its discretion to invite. This will just funnel legal challenges into judicial review.
- Decision timeframes have been limited to 90 days. So far only 3 projects have a decision timeframe of longer than 90 days, but retaining discretion to go beyond is important. Panels need enough time to consider really large and complex projects.

"Overall, the Fast-track Approvals Act remains vulnerable to poor decision-making as it lacks adequate environmental safeguards. Wider reform of the law is needed to address these issues," concluded Ms Schlaepfer.

+64 9 302 2972

manager@eds.org.nz



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